

25STCV32892 25STCV32892

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-07-30

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Case Number: 25STCV32892 Hearing Date: July 30, 2026 Dept: 408

Plaintiff Hugo Ajanel's Counsel Natali Shabani, Esq.'s

Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.

I.

BACKGROUND

On November 12, 2025, Plaintiff Hugo

Ajanel ("Plaintiff") filed a complaint against Defendants City of Los Angeles ("City") and David Gilmore ("Gilmore" collectively "Defendants") alleging causes of action for

1.

Battery;

2.

Assault;

and

3.

Claims

and Actions Against Public Entities and Public Employees (Govt. Code, § 815.2).

On February 24, 2026, the City filed

an answer to Plaintiff's complaint and a cross-complaint against Roes 1-10.

On July 7, 2026, counsel for

Plaintiff, Natali Shabani, Esq. ("Counsel"), filed: (1) MC-051, Motion to be

Relieved as Counsel; (2) Declaration in Support of Motion to be Relieved as Counsel; (3) MC-053, Proposed Order; and (4) Proof of Service. No opposition or other responsive pleading has been filed.

II.

LEGAL

STANDARD

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

An attorney moving to be relieved as counsel under California Code of Civil Procedure section 284(2) must meet the requirements set out in California Rules of Court, rule 3.1362. To comply with Rule 3.1362, the moving party must submit the following forms: (1) Notice of Motion and Motion to be Relieved as Counsel; (2) Declaration in Support of Attorney's Motion to be Relieved as Counsel; and (3) Order Granting Attorney's Motion to be Relieved as Counsel. (Cal. Rules of Court, Rule 3.1362, subd. (a), (c), (e).)

The moving party must serve the aforementioned forms on the client and all other parties who have appeared in the case. (Cal. Rules of Court, Rule 3.1362, subd. (d).) Further, when the client is served by mail, the attorney's declaration must show that the client's address was confirmed within the last 30 days and how it was confirmed. (Ibid.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

III.

DISCUSSION

Counsel's motion complies with the requirements of California Rules of Court, rule 3.1362, in that Counsel

provided a motion to be relieved as Counsel; a declaration in support; a proposed order granting Counsel's motion; and proof of service as to Plaintiff.

The declaration states that good cause exists for withdrawal because circumstances have arisen that make continued representation unreasonably difficult. (Shabani Decl., ¶ 3.) The declaration further states Counsel cannot provide further detail regarding the basis of the request in a public filing in order to protect the attorney-client privilege and avoid disclosure of confidential information. (Id., at ¶ 4.) However, Counsel is prepared to provide additional information to the court in camera if necessary. (Ibid.)

The court determines that the requirements of Rule 3.1362 enumerated above have been sufficiently met. The court grants the requested withdrawal effective upon the filing of proof of service showing service of the signed order to Plaintiff.

IV.

CONCLUSION

Plaintiff Hugo Ajanel's Counsel

Natali Shabani, Esq.'s Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.